

Stefani

v.

Stefani

(Case No. 199323)

Ms. Stefani has filed a request for order putting at issue custody, visitation, child support, spousal support, and attorney fees. The motion was served, via e-mail. Attached to the proof of service is an email message from Ms. Lauser to Ms. Chase. The message requests confirmation that the Kinney Law Firm is agreeable to accepting service, via e-mail; however, that same message refers to Mr. Kinney having previously refused such service. Uncertainty exists on whether the motion has been properly served under California Code of Civil Procedure, section 1010.6 (Electronic Service of Documents). That concern is further warranted given the Respondent has yet to file a responsive pleading or the necessary income and expense declaration.

Petitioner should come prepared to address the issue of service as contemplated in section 1010.6. If service has been had, the Court will Order a responsive declaration be filed along with an income and expense declaration by Mr. Stefani. Additionally, each party is to file a proposed calculation for child and spousal support using one of the certified programs for doing so.

Stock

v.

Stock

(Case No. 182983)

Ms. Stock filed a request for order that seeks to change visitation between Mr. Stock and their minor daughter. The request asks that physical custody be awarded to Ms. Stock and that Mr. Stock have visitation on the 1st, 2nd, 3rd, and 4th weekends of the month from Thursday to Sunday.

Ms. Stock also raises issue with the child's school. She contends the school location has changed several times to accommodate Mr. Stock's significant other's schedule. Now that Mr. Stock and his significant other have reconciled, a request to change the child's school has again resurfaced. Ms. Stock also requests that the significant other not be the responsible adult that cares for the minor child in Mr. Stock's absence.

The motion was served on May 10, 2022, according to the proof of service. The Court is without a responsive declaration and orders one be filed. Should a response not be filed, the Court intends to issue orders on what information it has.

The parties should come prepared to address the issue of child custody recommended counseling, i.e. whether they have reported to Family Court Services as ordered at Section 6 of the FL-300 form.

Tumino

v.

Tumino

(Case No. 195081)

Mr. Tumino filed a request for order seeking one-half of the stimulus proceeds received by Ms. Tumino and to change child support. The matter came regularly for hearing on May 23, 2022, and then continued to today's date to allow Ms. Tumino to file a responsive pleading and the necessary income and expense declaration. As of the drafting of this tentative decision, the documents have not been received by the Court. The Court orders a response be filed along with an income and expense declaration.

Pursuant to a stipulated judgment, Mr. Tumino is paying \$1,400.00 per month in support. He contends the earnings of Ms. Tumino have substantially changed since entry of judgment. How so? She is an esthetician and her work had become nonexistent because of the Covid shutdown, but has since changed and "she is now leading a lavish lifestyle and traveling frequently" (See Mr. Tumino's Attachment to the FL-300). He also identifies Ms. Tumino as the sole recipient of the \$4,000.00 in IHSS funding (for their children) received monthly. To the extent possible and with the information available, each party shall come to Court with a proposed calculation of child support.

In regards to the stimulus payment, Mr. Tumino contends \$14,000.00 has been received and negotiated by Ms. Tumino. She admits this, allegedly. He is asking for one-half of this amount (\$7,000.00). Having conferred with the judgment, the Court tentatively sides with Mr. Tumino on this issue, but reserves on the final decision until after considering Ms. Tumino's responsive declaration.